

File No.: EXP202201673

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by EUSKALTEL, S.A. (hereinafter, the appellant), regarding the requirement for compliance with the resolution signed by the Director of the Spanish Agency for Data Protection, dated March 26, 2024, and based on the following:

FACTS

FIRST: On January 5, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202201673. The resolution was notified to the appellant on January 11, 2024, as evidenced in the file. In said resolution, the claim made by A.A.A. (hereinafter, the claimant) was upheld, and the appellant was urged to send the claimant a certificate of compliance with the resolution, having to communicate to this Agency the actions taken as a consequence of said resolution.

SECOND: On February 23, 2024, the recourse for reconsideration presented by the appellant against said resolution was resolved, dismissing the arguments raised therein with justification.

THIRD: On March 15, a document was received in this Agency from the appellant stating that the right of the interested party had been addressed.

FOURTH: On March 21, a document was received from the claimant requesting compliance with the resolution.

FIFTH: After verifying that the information provided by the appellant did not allow for the consideration of the right of access to be met in accordance with the terms and grounds set forth in the resolution, the appellant was required in a document notified on April 4 to send the claimant a certificate of compliance with the referenced resolution in the terms described therein, opening a new period of five working days for this purpose. Additionally, within ten working days, the appellant had to notify this Agency of the measures adopted in compliance with the requirement made in the previous point.

SIXTH: On April 10, 2024, the appellant submitted a recourse for reconsideration to the AEPD against the document indicated in the previous point, expressing their disagreement with it.

To the above facts, the following are applicable,

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LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of the LOPDGDD.

II

Grounds for inadmissibility

Article 116 of the LPACAP establishes in its letter c) as a ground for inadmissibility of administrative recourses “To be an act not susceptible to recourse.”

III

Acts susceptible to recourse

According to the provisions of paragraph 1 of Article 112 of the LPACAP: “1. Against resolutions and procedural acts, if the latter directly or indirectly decide the substance of the matter, determine the impossibility of continuing the procedure, produce defenselessness or irreparable harm to legitimate rights and interests, the interested parties may file appeals for reconsideration and optional appeals for reconsideration, which may be based on any of the grounds for nullity or annulment provided for in Articles 47 and 48 of this Law.

Opposition to the remaining procedural acts may be raised by the interested parties for consideration in the resolution that concludes the procedure.”

In this case, the requirement for compliance with the resolution is a procedural act in which the appellant is required to comply with the resolution of January 5, 2024, in the terms described therein, providing them with a new deadline for this purpose.

In said resolution, it was established: “SECOND: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 18 of the GDPR have been infringed and to urge EUSKALTEL, S.A. with NIF A48766695, to send the claimant a certificate within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions set forth in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

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Therefore, this document reiterates the obligation to comply with a firm and enforceable resolution, in accordance with the grounds stated therein. The appellant was already allowed to disagree with this resolution within the relevant appeal deadlines, which were resolved with justification through the resolution of the appeal for reconsideration reflected in the second fact.

IV

Conclusion

Therefore, it can be concluded that this document does not decide on the merits of the matter nor does it determine the impossibility of continuing the procedure, nor does it produce defenselessness or irreparable harm to legitimate rights and interests, which is why the appeal should be inadmissible as it pertains to an act not subject to appeal.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO INADMIT the appeal for reconsideration filed by EUSKALTEL, S.A. against the document of this Agency, issued on March 26, 2024, in the file EXP202201673.

SECOND: TO NOTIFY this resolution to EUSKALTEL, S.A.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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